

CASE SUMMARY

State (BSES YPL) v. Yasmeen

SC No. 48/2022 | FIR No. 545/2019, PS Seelampur | Court of the Addl. Sessions Judge-05 (Electricity), East, Karkardooma Courts, Delhi

|                  |                                                                                                                                                                                                                                   |
|------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| COURT            | Court of the Additional Sessions Judge-05 (Electricity), East District, Karkardooma Courts, Delhi                                                                                                                                 |
| JUDGE            | Sh. Ashish Rastogi, Addl. Sessions Judge-05 (Electricity)                                                                                                                                                                         |
| DATE OF JUDGMENT | 16 January 2026 (date of inspection / offence: 18 November 2019)                                                                                                                                                                  |
| PARTIES          | State (BSES Yamuna Power Ltd.) v. Yasmeen, R/o H. No. E-16/B-178, T-Hut, New Seelampur, Delhi-110053                                                                                                                              |
| STATUTES INVOKED | Section 135 (and third proviso to s. 135(1)), Electricity Act, 2003; Section 24, IPC; Sections 65B, 106 & 4, Indian Evidence Act, 1872; Sections 251, 313 & 41A, Cr.P.C.; Regulations 60–63, DERC (Supply Code) Regulations, 2007 |
| RESULT           | Convicted under Section 135, Electricity Act, 2003. Matter posted for hearing on quantum of sentence.                                                                                                                             |

CHARGE BEFORE THE COURT

Whether the accused Yasmeen dishonestly abstracted electricity at her unmetered first-floor premises through a two-core grey wire connected to the licensee’s service cable at Pole No. YVR-Z-864 after puncturing that cable, so as to attract Section 135(1)(a) of the Electricity Act, 2003; and whether she discharged the onus cast by the presumption in the third proviso to Section 135(1) once the unauthorised means of abstraction was proved.

FACTS

On 18 November 2019 at about 6.55 a.m., an inspection team of BSES Yamuna Power Ltd. headed by Sh. Tara Chandra (the then Assistant Manager) inspected the residential premises at H. No. E-16B/178, First Floor, T-Hut, New Seelampur, Delhi. No electricity meter was installed; the accused was found drawing supply through a two-core grey wire connected from the BSES YPL service cable mounted at Pole No. YVR-Z-864, after puncturing that cable. The accused was present at the premises; the connected load was 2.222 KW, used for domestic purposes. Sh. Sumit videographed the proceedings; an Inspection Report, Load Report, Seizure Memo and Advisory Notice were prepared at the spot. The company assessed a theft demand of Rs. 48,794/-, which went unpaid, and on its Authorised Officer’s complaint FIR No. 545/2019 was registered at PS Seelampur.

The IO, ASI Netrapal Singh, interrogated the inspection officials and the accused, seized her Election ID card and copies of the ownership documents of the inspected premises, and filed the charge-sheet. Notice under Section 251 Cr.P.C. was given on 12 January 2024; the accused pleaded not guilty. The prosecution examined three witnesses: PW-1 ASI Netrapal Singh (IO), PW-2 Sumit (videographer, proving the CD and a Section 65B certificate, Ex.PW2/B) and

PW-3 Tara Chandra (team head; proved the inspection report, load report, seizure memo, advisory notice, theft bill and complaint, and identified the seized half-metre PVC aluminium cable, Ex.P1). Under Section 313 Cr.P.C. the accused denied all allegations and pleaded false implication; she led no defence evidence.

## REASONING OF THE COURT

### HEADNOTE

Puncturing the licensee’s service cable to draw unmetered supply is direct theft within Section 135(1)(a); an occupant present at the premises and identified in the inspection videography is the consumer, and once the unauthorised means is proved the compulsory presumption in the third proviso convicts unless rebutted by evidence of a lawful, metered source — which a bare plea of false implication cannot supply.

**Section 135(1)(a) was engaged by the punctured-cable tap.** The Court set out the ingredients of Section 135(1) — dishonest tapping of, or connection with, a licensee’s lines, importing Section 24 IPC for “dishonestly” — and found the case squarely within clause (a): a wire connected to the licensee’s service cable, after puncturing it, feeding unmetered premises. The third proviso’s presumption of dishonest use arose on proof of that artificial means.

**The inspection stood proved, and the accused was identified in the videography.** PW-3 (team head) and PW-2 (videographer) deposed consistently to the absence of any meter, the grey wire tapped from the pole-mounted service cable, the accused’s presence, and the 2.222 KW domestic load; the video, proved with a Section 65B certificate (Ex.PW2/B), showed the mode and manner of the theft, and PW-3 identified the accused in it. The suggestions that the wire was planted or the premises not hers were denied, and the seized half-metre cable was identified in court. The IO had, in addition, seized copies of the ownership documents of the premises during investigation.

**The absence of a public witness did not weaken the prosecution.** No animosity of the officials was shown; on *Punjab State Electricity Board v. Ashwani Kumar*, 2010 (7) SCC 569, the official inspection report carries a presumption of regularity, and on *Sushil Sharma v. BSES Rajdhani Power Ltd.* (Delhi HC, CrI. A. 1060/2010), non-examination of an independent witness is no infirmity. No procedural lapse under DERC Regulations 60–63 was suggested in cross-examination.

**The presumption was compulsory, and the accused led nothing to rebut it.** Following *Neeraj Dutt* (compulsory “shall presume”) and *Hiten P. Dalal* (prudent-man standard), the Court noted that the accused led no defence evidence, that the premises admittedly had no meter, that appliances were running with no explanation of their source, and that no Genset or alternate source was claimed. The natural rebuttal — paid electricity bills, per *Mukesh Rastogi* and the Section 106 onus — was never attempted. The presumption stood unrebutted and the identity of neither the accused nor the premises in the video was disputed.

## INTERPRETATION OF THE ELECTRICITY STATUTES

### ELECTRICITY ACT, 2003

#### Section 135(1)(a) — Theft of Electricity

The Court treated clause (a) — tapping or making a connection with a licensee’s overhead, underground or service lines/wires — as the operative limb, the case being one of direct hooking rather than meter tampering (clauses (b)–(e) having no factual foundation). As the Act does not define “dishonestly,” the Court imported Section 24 IPC and treated

the drawing of supply to unmetered premises through a wire connected to the licensee’s service cable after puncturing it as satisfying the requirement of dishonest intention.

### Third Proviso to Section 135(1) — Presumption of Dishonest Use

Read as a reverse-onus clause: proof of an artificial or unauthorised means of abstraction raises a presumption of dishonest use “until the contrary is proved.” Reading it with the “shall presume” jurisprudence (*Neeraj Dutt*) and the rebuttal standard (*Hiten P. Dalal*), the Court held that the burden shifted to the accused to make innocence reasonably probable — a bare denial, without evidence of a lawful source or paid bills, could not discharge it.

### DERC (SUPPLY CODE) REGULATIONS, 2007 — REGULATIONS 60 TO 63

The Court reproduced Regulations 60–63 — the inspection power with photo-identification safeguards (Reg. 60), the contemporaneous site report with seizure, sealing and photographic/video documentation (Reg. 61), the prosecution procedure with the 24-hour police complaint and the caution that a missing meter seal alone cannot found a theft case (Reg. 62), and the assessment at twice the applicable tariff for up to twelve months with credit for units already paid (Reg. 63). Unchallenged compliance confirmed the inspection’s regularity; the Rs. 48,794/- assessment measured the theft and required no separate proof as an ingredient.

### HELD

The prosecution proved beyond reasonable doubt that no electricity meter was available at the accused’s premises at the time of inspection and that Yasmeen was found indulging in direct theft of electricity through illegal wires — an offence punishable under Section 135 of the Electricity Act, 2003. Having led no evidence, she failed to rebut the statutory presumption. Yasmeen is accordingly **convicted under Section 135 of the Electricity Act, 2003**, and is to be heard on the quantum of sentence.

### SIGNIFICANCE

A clean application of the direct-theft template to a punctured service cable, decided on the inspection evidence alone. Five propositions stand out:

- **Puncturing a service cable is a clause (a) tap.** The offence does not require a connection at the pole-head or distribution box; piercing the licensee’s service cable to bleed supply is itself the actionable connection.
- **Identification in the videography anchors user status.** PW-3’s identification of the accused in the 65B-certified video — never disputed as to her identity or the premises — carried the finding that she was the consumer.
- **Ownership documents seized in investigation reinforce occupancy.** The IO’s seizure of the premises’ ownership papers pre-empted any premises-not-mine defence of the kind that failed in companion cases.
- **No settlement was needed for conviction.** Unlike several companion matters, no civil settlement featured; the conviction rests wholly on the unrebutted presumption and inspection evidence.
- **A filed 65B certificate forecloses the videography challenge.** With Ex.PW2/B on record, admissibility of the video was never seriously contestable.

### CITATIONS

Neither side argued from case law; every citation below is drawn from the Court’s own reasoning.

| CASE                                                                                                   | PRINCIPLE CITED FOR                                                                                                                                                                     | TREATMENT |
|--------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------|
| <b><i>Punjab State Electricity Board v. Ashwani Kumar</i></b><br>2010 (7) SCC 569                      | An inspection report prepared by Board officers in discharge of official duty carries a presumption of regularity; the onus lies on the consumer to rebut it by cogent evidence.        | Relied on |
| <b><i>Sushil Sharma v. BSES Rajdhani Power Ltd.</i></b><br>Delhi HC, Crl. A. 1060/2010<br>(22.12.2010) | Non-examination of an independent/public witness is no infirmity where the inspecting officials are trustworthy and bear no enmity towards the accused.                                 | Relied on |
| <b><i>Neeraj Dutt v. State</i></b><br>SLP(Crl.) 6497/2020                                              | “Shall presume” denotes a compulsory legal presumption which the Court is bound to draw until the fact is disproved.                                                                    | Relied on |
| <b><i>Hiten P. Dalal v. Bratindranath Banerjee</i></b><br>2001 (6) SCC 16                              | A statutory presumption need not be conclusively disproved; the accused must adduce evidence making the defence reasonably probable to a prudent man.                                   | Relied on |
| <b><i>Mukesh Rastogi v. North Delhi Power Ltd.</i></b><br>2007 (99) DRJ 108                            | The easiest rebuttal of the theft presumption is to produce paid electricity bills; under Section 106 of the Evidence Act the onus of proving lawful, metered use lies on the consumer. | Relied on |

*This summary is a condensed digest prepared for quick reference. It is not a substitute for the full text of the judgment and should not be relied upon for legal advice without verification against the original.*